

# Galaxy

M A G A Z I N E

JUNE 1959

50c

NO PLACE  
FOR CRIME

by J.T.  
McINTOSH

•  
WHATEVER  
COUNTS

by FREDERIK  
POHL

•  
TAKE WOODEN  
INDIANS

by AVRAM  
DAVIDSON

•  
ANY  
QUESTIONS?

by WILLY LEY

•  
EXTRACTS  
FROM THE  
GALACTICK  
ALMANACK

by LARRY M.  
HARRIS

And Other Stories



# Galaxy

M A G A Z I N E

JUNE 1959

50c

NO PLACE  
FOR CRIME

by J. T.  
McINTOSH

•  
WHATEVER  
COUNTS  
by FREDERIK  
POHL

•  
TAKE WOODEN  
INDIANS  
by AVRAM  
DAVIDSON

•  
ANY  
QUESTIONS?  
by WILLY LEY

•  
EXTRACTS  
FROM THE  
GALACTICK  
ALMANACK  
by LARRY M.  
HARRIS

And Other Stories



## **The Project Gutenberg eBook of Extracts from the Galactick Almanack: Music Around the Universe**

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Extracts from the Galactick Almanack: Music Around the Universe

Author: Laurence M. Janifer

Illustrator: Don Martin

Release date: April 2, 2016 [eBook #51622]

Most recently updated: October 23, 2024

Language: English

Other information and formats: [www.gutenberg.org/ebooks/51622](http://www.gutenberg.org/ebooks/51622)

Credits: Produced by Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

\*\*\* START OF THE PROJECT GUTENBERG EBOOK EXTRACTS  
FROM THE GALACTICK ALMANACK: MUSIC AROUND THE  
UNIVERSE \*\*\*

---

# **EXTRACTS FROM THE GALACTICK ALMANACK**

**Music Around the Universe**

**By LARRY M. HARRIS**

**Illustrated by DON MARTIN**

**[Transcriber's Note: This etext was produced from  
Galaxy Magazine June 1959.**

**Extensive research did not uncover any evidence that  
the U.S. copyright on this publication was renewed.]**

---

***Don't take your eye off music ... there is  
going to be a lot more to it than meets the ear!***

---

This first selection deals entirely with the Music Section of the Almanack. Passed over in this anthology, which is intended for general readership, are all references to the four-dimensional doubly extensive polyphony of Green III (interested parties are referred to "Time in Reverse, or the Musical Granny Knot," by Alfid Carp, *Papers of the Rigel Musicological Society*) or, for reasons of local censorship, the notices regarding Shem VI, VII and IX and the racial-sex "music" which is common on those planets.

All dates have been made conformable with the Terran Calendar (as in the standard Terran edition of the Almanack) by application of Winstock Benjamin's Least Square Variable Time Scale.

---

**FEBRUARY 17:** Today marks the birth date of Freem Freem, of Dubhe IV, perhaps the most celebrated child prodigy in musical history. Though it is, of course, true that he appeared in no concerts after the age of twelve, none who have seen the solidographs of his early performances can ever forget the intent face, the tense, accurate motions of the hands, the utter perfection of Freem's entire performance.

---



---

His first concert, given at the age of four, was an amazing spectacle. Respected critics refused to believe that Freem was as young as his manager (an octopoid from Fomalhaut) claimed, and were satisfied only by the sworn affidavit of Glerk, the well-known Sirian, who was present at the preliminary interviews.

Being a Sirian, Glerk was naturally incapable of dissimulation, and his earnest supersonics soon persuaded the critics of the truth. Freem was, in actuality, only four years old.

In the next eight years, Freem concertized throughout the Galaxy. His triumph on Deneb at the age of six, the stellar reception given him by a deputation of composers and critics from the Lesser Magellanic Cloud

when he appeared in that sector, and the introduction (as an encore) of his single composition, the beloved *Memories of Old Age*, are still recalled.

And then, at the age of eleven, Freem's concerts ceased. Music-lovers throughout the Galaxy were stunned by the news that their famed prodigy would appear no longer. At the age of twelve, Freem Freem was dead.

Terrans have never felt this loss as deeply as other Galactic races, and it is not difficult to see why. The standard "year" of Dubhe IV equals 300 Earth years; to the short-lived Terrans, Freem Freem had given his first concert at the age of 1200, and had died at the ripe old age of 3600 years.

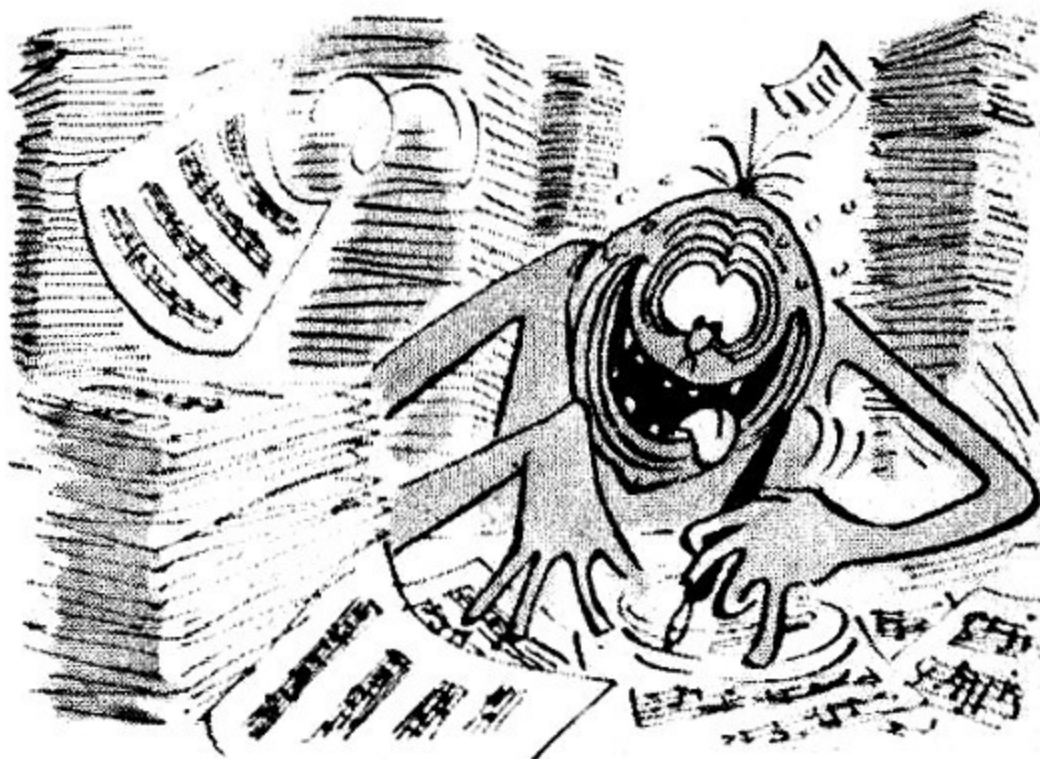
"Calling a 1200-year-old being a child prodigy," states the Terran Dictionary of Music and Musicians, rather tartly, "is the kind of misstatement up with which we shall not put."

Particularly noteworthy is the parallel attitude expressed by the inhabitants of Terk I, whose "year" is approximately three Terran days, to the alleged "short" life of Wolfgang Amadeus Mozart.

---

**MAY 12:** Wilrik Rotha Rotha Delk Shkulma Tik was born on this date in 8080. Although he/she is renowned both as the creator of symphonic music on Wolf XVI and as the progenitor of the sole Galactic Censorship Law which remains in effect in this enlightened age, very little is actually known about the history of that law.

---



---

The full story is, very roughly, as follows:

In 8257, a composition was published by the firm of Scholer and Dicks (Sirius), the Concerto for Wood-Block and Orchestra by Tik. Since this was not only the first appearance of any composition by Tik, but was in fact the first composition of any kind to see publication from his planet of Wolf XVI, the musical world was astonished at the power, control and mastery the piece showed.

A review which is still extant stated: "It is not possible that a composition of such a high level of organization should be the first to proceed from a composer—or from an entire planet. Yet we must recognize the merit and worth of Tik's Concerto, and applaud the force of the composer, in a higher degree than usual."



Even more amazing than the foregoing was the speed with which Tik's compositions followed one another. The Concerto was followed by a sonata, Tik's *Tock*, his/her Free-Fall Ballet for Centipeds, *Lights! Action! Comrades!*, a Symphony, an Imbroglia for Unstrung Violin, and fourteen Wolfish Rhapsodies—*all within the year!*

Scholars visited Wolf XVI and reported once again that there was no musical history on the planet.

Success, fame and money were Tik's. Succeeding compositions were received with an amount of enthusiasm that would have done credit to any musician.

And Wolf XVI seemed to awaken at his/her touch. Within ten years, there was a school of composition established there, and works of astounding complexity and beauty came pouring forth. The "great flowering," as it was called, seemed to inspire other planets as well—to name only a few, Dog XII, Goldstone IX and Trent II (whose inhabitants, dwelling underwater for the most part, had never had anything like a musical history).

Tik's own income began to go down as the process continued. Then the astonishing truth was discovered.

Tik was not a composer at all—merely an electronics technician! He/she had recorded the sounds of the planet's main downtown business center and slowed the recording to half-speed. Since the inhabitants of Wolf XVI converse in batlike squeals, this slowing resulted in a series of patterns which fell within sonic range, and which had all of the scope and the complexity of music itself.

The other planets had copied the trick and soon the Galaxy was glutted with this electronic "music." The climax came when a judge on Paolo III aided in the recording of a court trial over which he presided. During the two weeks of subsonic testimony, speech and bustle, he supervised recording apparatus and, in fact, announced that he had performed the actual "arrangement" involved: speeding up the recordings so that the two-week subsonic trial became a half-hour fantasia.

The judge lost the subsequent election and irrationally placed the blame on the recording (which had not been well-received by the critics). Single-handed, he restored the state of pure music by pushing through the Galactic

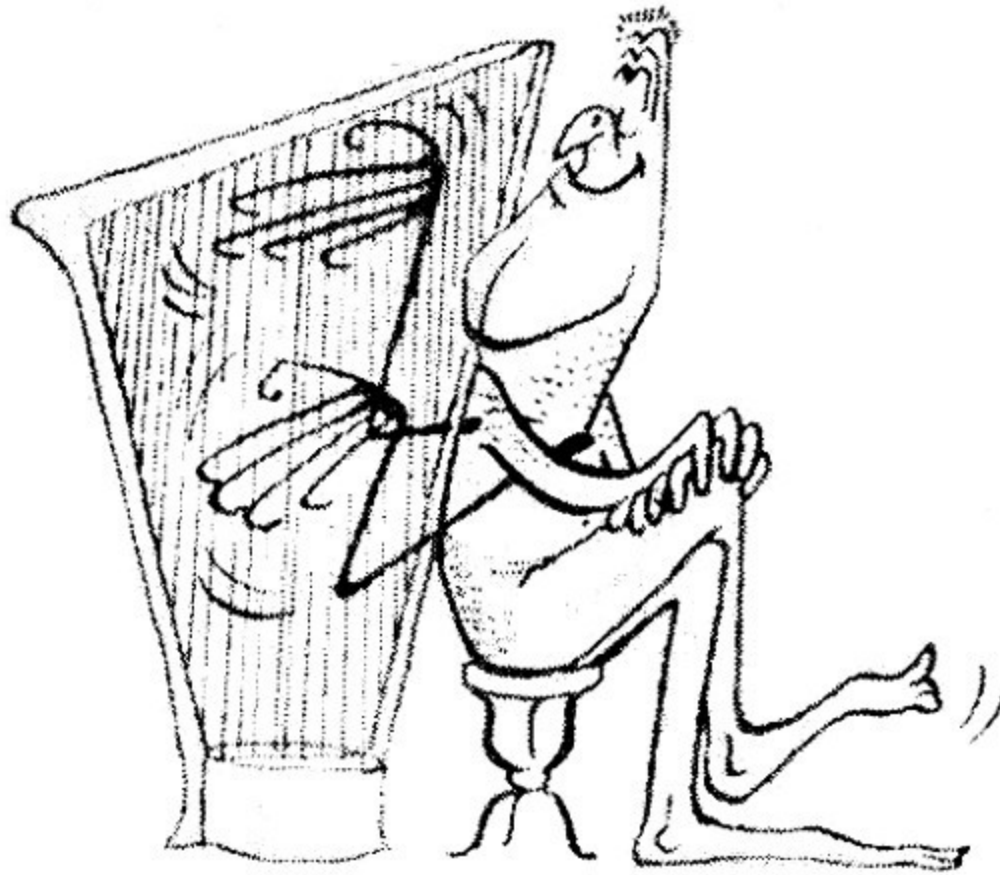
Assembly a censorship rule requiring that all recording companies, musicians, technicians and composers be limited to the normal sonic range of the planet on which they were working.

Tik himself, after the passage of this law, eked out a bare living as a translator from the supersonic. He died, alone and friendless, in 9501.

---

**JUNE 4:** The composition, on this date, in 8236, of Wladislaw Wladislaw's Concertino for Enclosed Harp stirs reflections in musical minds of the inventor and first virtuoso on this instrument, the ingenious Barsak Gh. Therwent of Canopus XII. Nowadays, with compositions for that instrument as common as the *chadlas* of Gh. Therwent's home planet, we are likely to pass over the startling and almost accidental circumstance that led to his marvelous discovery.

---



---

As a small boy, Gh. Therwent was enamored of music and musicians; he played the *gleep*-flute before the age of eight and, using his hair-thin minor arms, was an accomplished performer on the Irish (or small open) harp in his fifteenth year. A tendency to confuse the strings of the harp with his own digital extremities, however, seemed serious enough to rule out a concert career for the young *flalk*, and when an Earth-made piano was delivered to the home of a neighbor who fancied himself a collector of baroque instruments, young Gh. was among the first to attempt playing on it.

Unfortunately, he could not muster pressure sufficient in his secondary arms and digits to depress the keys; more, he kept slipping between them. It was

one such slip that led to his discovery of the enclosed strings at the back of the piano (a spinet).

The subtle sonorities of plucked strings at the back of a closed chamber excited him, and he continued research into the instrument in a somewhat more organized manner. Soon he was able to give a concert of music which he himself had arranged—and when Wladislaw Wladislaw dedicated his composition to Gh., the performer's future was assured.

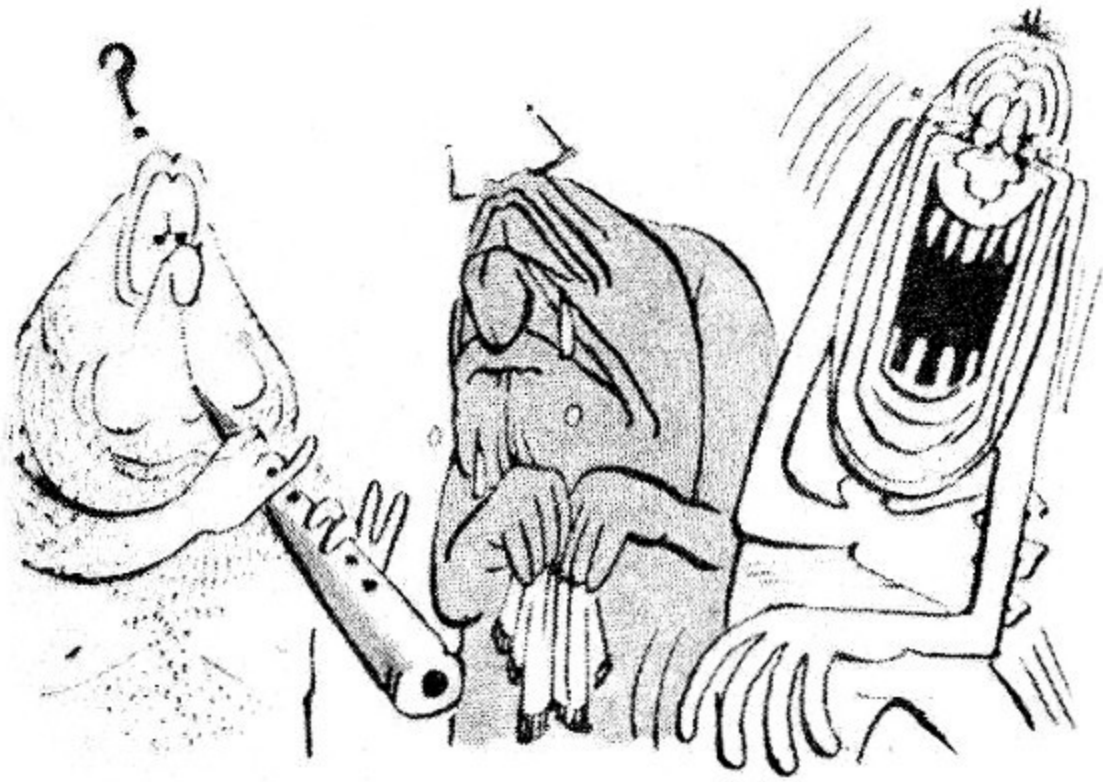
The rest of his triumphant story is too well known to repeat here. The single observation on Gh. Therwent's playing, however, by the composer Ratling, is perhaps worthy of note.

"He don't play on the white keys, and he don't play on the black keys," said Ratling, with that cultivated lack of grammar which made him famous as an eccentric. "He plays in the cracks!"

---

**JULY 23:** On this date, the Hrrshtk Notes were discovered in a *welf*-shop cellar on Deneb III.

---



---

These notes are, quite certainly, alone in their originality, and in the force which they have had on the growth of subsequent musicians.

To begin at the beginning: it is well established that Ludwig Hrrshtk, perhaps the most widely known Denebian composer, died of overwork in his prime. His compositions, until the famous T85 discoveries of G'g Rash, were almost alone in their universal appeal. Races the Galaxy over have thrilled to Hrrshtk's Second Symphony, his Concerto for Old Men, and the inspiring Classic Mambo Suite. It is, as a matter of fact, said that G'g Rash himself was led to his discovery by considering the question:

"How can many different races, experiencing totally different emotions in totally different ways, agree on the importance of a single musical composition by Hrrshtk? How can all share a single emotional experience?"

His researches delved deeply into the Hrrshk compositions, and a tentative theory based on the Most Common Harmonic, now shown to have been totally mistaken, led to the T85 discoveries.

The Hrrshk notes, however, found long afterward, provide the real answer.

Among a pile of sketches and musical fragments was found a long list—or, rather, a series of lists. In the form of a Galactic Dictionary, the paper is divided into many columns, each headed with the name of a different planet.

Rather than describe this document, we are printing an excerpt from it herewith:

| DENE III |         | TERRA MARS |         | FOMALHAUT II |  | SIRIUS VII |
|----------|---------|------------|---------|--------------|--|------------|
| Love     | Anger   | Hunger     | Sadness | Madness      |  |            |
| Hate     | Joy     | F'rit      | Prayer  | Love         |  |            |
| Prayer   | Madness | Sadness    | Full    | Joy          |  |            |
| Vilb     | NPE     | Non-F'rit  | Golk    | NPE          |  |            |

In completed form, the document contains over one hundred and fifty separate listings for race, and over six hundred separate emotional or subject headings. In some places (like the Terra and Sirius listing for Vilb, above), the text is marked NPE, and this has been taken to mean No Precise Equivalent. For instance, such a marking appears after the Denebian *shhr* for both Terra and Mars, although Sirius has the listing *grk* and Fomalhaut *plarar* in the desert.

Hrrshk may be hailed, therefore, as the discoverer of the Doctrine of Emotional Equivalency, later promulgated in a different form by Space Patrol Psychiatrist Rodney Garman. Further, the document alluded to above explains a phrase in Hrrshk's noted letter to Dibble Young, which has puzzled commentators since its first appearance.

Hrrshk is here alluding to the composition of his Revolutionary Ode, which all Terra knows as the most perfect expression of true love to be found in music:

"It's a Revolutionary Ode to me, my friend—but not to you. As we say here, one man's mood is another man's passion."

---

**SEPTEMBER 1:** On this date in the year 9909, Treth Schmaltar died on his home planet of Wellington V. All the Galaxy knows his famous Symphonic Storm Suite; less known, but equally interesting, is the history and development of its solo instrument.

---



---

The natives of Wellington V feed on airborne plankton, which is carried by the vibrations of sound or speech. This was a little-known fact for many years, but did account for the joy with which the first explorers on Wellington V were greeted. Their speech created waves that fed the natives.

When eating, the natives emit a strange humming noise, due to the action of the peculiar glottis. These facts drove the first settlers, like Treth Schmaltar, to the invention of a new instrument.

This was a large drumlike construction with a small hole in its side through which airborne plankton could enter. Inside the drum, a Wellingtonian crouched. When the drum was beaten, the air vibrations drove plankton into the native's mouth, and he ate and hummed.

(A mechanical device has since replaced the native. This is, of course, due to the terrific expense of importing both natives and plankton to other planets than Wellington V for concerts.)

Thus, a peculiarity of native life led not only to the Symphonic Storm Suite, but to such lovely compositions as Schmaltar's Hum-Drum Sonata.

---

**SEPTEMBER 30:** The victimization of the swanlike inhabitants of Harsh XII, perhaps the most pitiful musical scandal of the ages, was begun by Ferd Pill, born on this date in 8181. Pill, who died penitent in a neuterary of the Benedictine Order, is said to have conceived his idea after perusing some early Terran legends about the swan.

---





---

He never represented himself as the composer, but always as the agent or representative of a Harsh XII inhabitant. In the short space of three years, he sold over two hundred songs, none of great length but all, as musicians agree to this day, of a startling and almost un-Hnau-like beauty.

When a clerk in the records department of Pill's publishers discovered that Pill, having listed himself as the heir of each of the Harsh XII composers, was in fact collecting their money, an investigation began.

That the composers were in fact dead was easily discovered. That Pill was their murderer was the next matter that came to light.

In an agony of self-abasement, Pill confessed his crime. "The Harshians don't sing at all," he said. "They don't make a sound. But—like the legendary swan of old Terra—they do deliver themselves of one song in

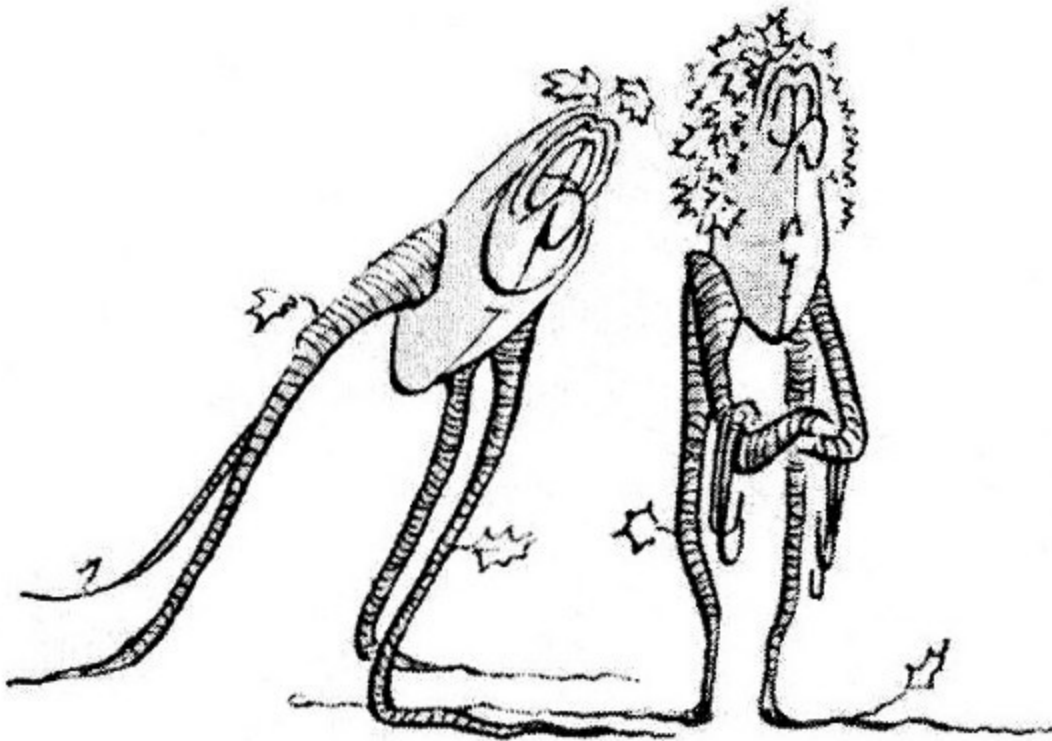
dying. I murdered them in order to record these songs, and then sold the recordings."

Pill's subsequent escape from the prison in which he was confined, and his trip to the sanctuary of the neuterary, were said to have been arranged by the grateful widow of one of the murdered Harshians, who had been enabled by her mate's death to remarry with a younger and handsomer Harshian.

---

**DECEMBER 5:** Today marks the birthday of Timmis Calk, a science teacher of Lavoris II.

---



---

Calk is almost forgotten today, but his magnificent Student Orchestra created a storm both of approval and protest when it was first seen in 9734. Critics on both sides of what rapidly became a Galaxywide controversy were forced, however, to acknowledge the magnificent playing of the Student Orchestra and its great technical attainments.

Its story begins with Calk himself and his sweetheart, a lovely being named Silla.

Though Calk's love for Silla was true and profound, Silla did not return his affectionate feelings. She was an anti-scientist, a musician. The sects were split on Lavoris II to such an extent that marriage between Calk and his beloved would have meant crossing the class lines—something which Silla, a music-lover, was unwilling to contemplate.

Calk therefore determined to prove to her that a scientist could be just as artistic as any musician. Months of hard work followed, until finally he was ready.

He engaged the great Drick Hall for his first concert—and the program consisted entirely of classical works of great difficulty. Beethoven's Ninth Symphony opened the program, and Fenk's Reversed Ode closed it. Calk had no time for the plaudits of critics and audience; he went searching for Silla.

But he was too late. She had heard his concert—and had immediately accepted the marriage proposal of a childhood sweetheart.

Calk nearly committed suicide. But at the last moment, he tossed the spraying-bottle away and went back to Silla.

"Why?" he said. "Why did you reject me, after hearing the marvelous music which I created?"

"You are not a musician, but a scientist," Silla said. "Any musician would have refrained from *growing* his orchestra from seeds."

Unable to understand her esthetic revulsion, Calk determined there and then to continue his work with the Student Orchestra (it made a great deal more

money than science-teaching). Wrapping his rootlets around his branches, he rolled away from her with crackling dignity.

\*\*\* END OF THE PROJECT GUTENBERG EBOOK EXTRACTS FROM  
THE GALACTICK ALMANACK: MUSIC AROUND THE UNIVERSE

\*\*\*

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

# THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at [www.gutenberg.org/license](http://www.gutenberg.org/license).

## **Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works**

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at [www.gutenberg.org](http://www.gutenberg.org). If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website ([www.gutenberg.org](http://www.gutenberg.org)), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.



1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

## 1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

## **Section 2. Information about the Mission of Project Gutenberg**

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at [www.gutenberg.org](http://www.gutenberg.org).

### **Section 3. Information about the Project Gutenberg Literary Archive Foundation**

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at [www.gutenberg.org/contact](http://www.gutenberg.org/contact)

### **Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation**

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: [www.gutenberg.org/donate](http://www.gutenberg.org/donate).

## **Section 5. General Information About Project Gutenberg electronic works**

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:  
[www.gutenberg.org](http://www.gutenberg.org).

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.